

Vikas Verma v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 5 February 2021 · WRIT - C No. 3869 of 2021 · Writ - C No. 3869 of 2021 · **Writ dismissed; petitioner already before CGRF under 7.10.**

HEADNOTE

A writ seeking to quash Executive Engineer orders and a recovery citation of Rs 1,66,689 was dismissed where the consumer had already approached the District Consumer Redressal Forum under clause 7.10 of the U.P. Electricity Supply Code, 2005, obtained stay of the recovery, and had his complaint rejected by the licensee. The Court held that the same cause could not be re-agitated by writ.

FACTUAL SUMMARY

Vikas Verma sought certiorari against Executive Engineer, PuVVNL Deoria orders dated 28 December 2017 and 23 March 2020, and recall of a Rs 1,66,689 recovery citation for electricity consumption. The Power Corporation submitted that he had already approached the District Consumer Redressal Forum under clause 7.10 of the U.P. Electricity Supply Code, 2005, that recovery had been stayed on 26 December 2017, and that respondent no. 4 had rejected his complaint—a fact the petitioner did not dispute.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

writ-after-cgrf-7.10

HOLDING

A consumer who has already invoked the District Consumer Redressal Forum under clause 7.10 of the U.P. Electricity Supply Code, 2005, in respect of a recovery citation, obtained stay, and had his complaint rejected by the licensee, cannot re-agitate the same cause by a writ petition challenging the same Executive Engineer orders and recovery. ¶ 1

PRINCIPLE TAGS

alternate-remedy-clause-7.10 Petitioner had already approached the District Consumer Redressal Forum under clause 7.10, recovery was stayed on 26.12.2017, and the complaint was rejected by respondent no. 4; the Court dismissed the writ as an attempt to re-agitate the same cause. ¶ 1

cgrf-7.10-alternate-remedy Clause 7.10 CGRF proceedings already invoked and the complaint rejected; parallel writ on the same recovery was not entertained. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF EXECUTIVE ENGINEER ORDERS DATED 28.12.2017 AND 23.03.2020 AND OF THE RS 1,66,689 RECOVERY CITATION

Writ dismissed for re-agitation after the clause 7.10 forum had already been invoked; billing and recovery merits were not examined. ¶ 1